

SENATE No. 2349

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting video recording or broadcasting while driving.

PETITION OF:

NAME:

Joanne M. Comerford

DISTRICT/ADDRESS:

Hampshire, Franklin and Worcester

SENATE No. 2349

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 2349) of Joanne M. Comerford for legislation to prohibit video recording or broadcasting while driving. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2206 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting video recording or broadcasting while driving.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13B of chapter 90 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection (a) the following 2
3 subsections:-

4 (a1/2) No operator of a motor vehicle shall record, broadcast, or otherwise capture
5 images or video of themselves. No operator shall wear, hold, or otherwise utilize or interact with
6 a spatial computer, or other augmented reality or mixed reality device, operating system, or
7 three-dimensional user interface.

8 (a3/4) An operator shall not view video, images or text unrelated to the operation,
9 maintenance, or navigation of the motor vehicle that is displayed on a monitor, screen or other
10 display installed in the motor vehicle or otherwise worn as a headset or elsewhere on the

operator's body. This subsection shall not apply to: (i) symbols or text that enable or disable the hands-free mode of either a mobile electronic device or an on-board application; (ii) symbols or text related to the use of audio systems; (iii) symbols or text related to the use of equipment installed in the motor vehicle by the manufacturer; (iv) symbols or text related to the use of a dispatch system; (v) video or images of vehicle occupants other than the operator; or (vi) video, images, symbols or text related to the use of traffic engineering equipment.

SECTION 2. Said section 13B of said chapter 90, as so appearing, is hereby further amended by striking out, in line 24, the words "using a mobile electronic device".

SECTION 3. Subsection (d) of said section 13B of said chapter 90, as so appearing, is hereby amended by inserting after the third sentence the following sentence:-

The provisions of subsections (a1/2) and (a3/4) of this section shall be enforced by law enforcement agencies only when an operator of a motor vehicle has been stopped for a violation of the motor vehicle laws or some other offense.